

17203. There is a Proof of Substituted Service but it is unclear whether the documents were served at a valid address for the respondents or the relationship of the person who received the documents to the respondents. The court notes that the trustees were represented by counsel in the original trust matter and there is no Proof of Service showing notice was given to counsel.

2. The Declaration filed March 9, 2026, states that because the petitioner believes that the scholarship fund was created using trust funds, the court should be able to review the trust documents and accounting. The declaration also appears to challenge the trust amendment which created the scholarship fund based on the trustor's possible health issues (page 2, lines 18-19). The petitioner should have brought her challenge or her questions about the trustor's capacity during the original litigation brought by Gloria Weeks in 2020 (case number FPR050261). The petitioner shall explain why she did not join in the litigation brought by Gloria Weeks.

LINE

9

**IN THE MATTER OF GERTIE MARIE WILLIAMS
PR26-00036**

Verified Petition Under Probate Code §850 For Accounting, Determination of Property Ownership, and Review of Fiduciary Conduct

PREGRANT ORDER

The court continued this matter from March 4, 2026, May 13, 2026, and June 25, 2026. Nothing has been filed to resolve the issues since the last hearing. The court notes that the petitioner retained new counsel on July 16, 2026.

The court on its own motion continues this hearing one final to November 4, 2026, at 9:30 a.m. in Department 22. Pending the continued hearing the petitioner shall resolve the following issues:

1. The petitioner used an incorrect Notice of Hearing form (DE-120). The petition seeks relief under Probate Code § 850 which requires the use of the Notice of Hearing to Determine Claim to Property (DE-115).
2. There is no Proof of Service on file showing all those entitled to notice have received it per Probate Code section 4544, including the attorney-in-fact and the principal.
3. There is no Proof of Service showing all those entitled to notice have received it per Probate Code section 850.
4. The petitioner is not listed as a current trustee of the trust. The settlors/original trustees are both alive. The petitioner shall explain her standing to bring a petition

requesting an accounting for a revocable trust per Probate Code section 16069.

5. The initials on the Durable Power of Attorney appear to be LP, which would be Lazarus Pete and not Gertie Williams. The petitioner shall explain how the DPOA is valid with the initials of someone other than the principal.

6. The revocable trust was executed in July 2017, and the Schedule A included the real property. The petitioner shall explain why the real property should not be considered a trust asset.

LINE

10

**IN RE THE ESTATE OF TABBIE LYNN SMITH, DECEASED
PR26-00100**

Petition for Letters of Administration and for Authorization to Administer Under the Independent Administration of Estates Act

PREGRANT ORDER

This matter was continued from April 9, 2026 and June 25, 2026 to allow the petitioner to address issues with the petition. Nothing has been filed by the petitioner since February 2026.

The court dismisses the petition.

LINE

11

**IN THE MATTER OF THE WILLIS THOMAS LIVING TRUST
PR26-00166**

Petition to Return Trust Assets to Trust and Invalidate Trust Based On (1) Lack of Capacity and (2) Undue Influence (Probate Code § 850; § 21380)

Objections to the Petition to Return Trust Assets to Trust and Invalidate Trust Based on (1) Lack of Capacity and (2) Undue Influence (Probate Code § 850; Probate Code § 21380)

PREGRANT ORDER

This matter was continued from May 11, 2026 and July 2, 2026 to allow the petitioner to address issues with the petition. The court has reviewed the amended Proof of Service filed July 28, 2026 which resolved the outstanding issues. At the last hearing, the court encouraged the parties to meet and confer.